

25CV03469 Unitarian Universalist Mission, et al. vs. The County of Santa Barbara

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-08-05

Motion: Defendant County of Santa Barbara's Motion for Judgment On The Pleadings

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Tentative Ruling: Unitarian Universalist Mission, et al. vs. The County of Santa Barbara

Case Number

25CV03469

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 08/05/2026 - 10:00

Nature of Proceedings

Defendant County of Santa Barbara's Motion for Judgment On The Pleadings

Tentative Ruling

For Plaintiffs Unitarian Universalist Mission and The Mission LLC: Richard Jacobs, Law Office of Richard Jacobs

For Defendant County of Santa Barbara: Rachel Van Mullem, Kristen Cortez, Office of the County Counsel

RULING

For the reasons stated herein, the motion of Defendant for judgment on the pleadings is ordered off-calendar.

This case was filed 6/4/25; the answer was filed 9/25/25; it is time to resolve the issue. The Writ of Mandate is set to be heard at 10am on 12/2/26; if an evidentiary hearing is requested on the remaining 2 counts, tell the Court now; trial on those issues would begin 12/3/26. The Court does not need to set a briefing schedule unless requested.

Background

As alleged in the complaint of Plaintiffs Unitarian Universalist Mission (the Mission) and The Mission LLC (the LLC), (collectively, Plaintiffs):

The LLC is a church that owns property located at 505 E. Los Olivos (the Property) in Santa Barbara, California. (Complaint, ¶ 15.) The Mission leased the property from the LLC. (Complaint, ¶ 16.) As part of that lease, the Mission receives a reduction in rent as long as the Property is deemed to fall within the “church exemption” as required by the Revenue and Taxation Code. (Complaint, ¶¶ 14, 17, 22-32.)

The Property is, and for approximately a century has, been used by various religious entities for church purposes, religious activities, and worship which occurs at least a few times a month with the intention of more frequent use in the future. (Complaint, ¶¶ 25-26 & 33.) The Property is also used by congregants for meditation and other related activities. (Complaint, ¶ 27.) The County of Santa Barbara (COSB) sent an examiner to view the Property to confirm that the use falls within the church exemption, and conducted an in-person inspection of the Property. (Complaint, ¶¶ 19, 35.) Plaintiffs also provided the necessary documentation to COSB. (Complaint, ¶¶ 20, 34.) Despite the Property being used for religious purposes and falling within the church exemption, COSB refuses to grant the exemption. (Complaint, ¶¶ 21, 36.)

On June 4, 2025, Plaintiffs filed their petition and complaint against Defendant COSB, asserting two causes of action: (1) for writ of mandate; and (2) for declaratory and injunctive relief.

On July 7, 2025, COSB filed an answer to the complaint.

On September 25, 2025, COSB filed an amended answer to the complaint, generally denying its allegations and asserting sixteen affirmative defenses.

On April 3, 2026, COSB filed a document labeled as a motion for judgment on the pleadings. Plaintiffs have filed an opposition to that motion.

Analysis

For the reasons discussed herein, the motion is procedurally defective and deficient, and will be ordered off calendar.

“Every direction of a Court or judge, made or entered in writing, and not included in a judgment, is denominated an order. An application for an order is a motion.” (Code Civ. Proc., § 1003.) Subject to exceptions not present here, written notice must be given for a motion for judgment on the pleadings. (Code Civ. Proc., § 1005, subd. (13); see also *Korchemny v. Piterman* (2021) 68 Cal.App.5th 1032, 1055–1056 [general discussion].)

“Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based.” (Code Civ. Proc., § 1010.) “A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order.” (Cal. Rules of Court, rule 3.1110(a).) “The purpose of these requirements is to cause the moving party to ‘sufficiently define the issues for the information and attention of the adverse party and the Court.’ [Citation.]” (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125 (*Luri*)). “[C]ourts generally may consider only the grounds stated in the notice of motion.” (*Kinda v.*

Carpenter (2016) 247 Cal.App.4th 1268, 1277.)

The motion of COSB does not include a written notice stating the nature of the order sought, the grounds upon which that motion is made, or the papers upon which it is based.

In addition, though the motion includes a citation to Code of Civil Procedure section 438 and is ostensibly made pursuant to that statute, “[t]he grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the Court is required to take judicial notice. Where the motion is based on a matter of which the Court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, the matter shall be specified in the notice of motion, or in the supporting points and authorities, except as the Court may otherwise permit.” (Code Civ. Proc., § 438, subd. (d).)

Notwithstanding the absence of an appropriate written notice stating the papers upon which the motion is based, COSB has submitted in support of the motion a declaration of Michael Daly who is the Chief Deputy Assessor in the Clerk-Recorder-Assessor’s Office, and a declaration of Emily Ferguson, who is employed by COSB as a Front Operations Supervisor in the Clerk-Recorder-Assessor’s Office. Those declarations contain information regarding, among other matters, the COSB’s official assessment and tax roll records for the Property and a tax exemption claim submitted by the LLC.

“ ‘A motion for judgment on the pleadings serves the function of a demurrer, challenging only defects on the face of the complaint.’ [Citation.] As with a demurrer, ‘[t]he grounds for a motion for judgment on the pleadings must appear on the face of the complaint or from a matter of which the Court may take judicial notice.’ [Citations.]” (Eckler v. Neutrogena Corp. (2015) 238 Cal.App.4th 433, 439.) Wholly absent from the motion is any reasoned argument showing why any of the information or evidence contained in the declarations of Daly and Ferguson appears on the face of the complaint or is a proper subject of judicial notice.

Further, COSB has filed with their reply, a notice of withdrawal of the Daly and Ferguson declarations submitted in support of the motion. As the points and arguments advanced in the motion cite and ostensibly rely on the matters appearing in those declarations, and for all further reasons discussed above, the supporting papers fail to “make clear the grounds for the relief sought.” (Luri, supra, 107 Cal.App.4th at p. 1125.) Moreover, as Plaintiffs have not had an opportunity to counter or respond to the withdrawal of the declarations including the effect, if any, of that withdrawal upon the points advanced by COSB, there exist due process concerns. (American Drug Stores, Inc. v. Stroh (1992) 10 Cal.App.4th 1446, 1453 [general discussion].)

Also relevant here, COSB must “file and serve with the motion for judgment on the pleadings a declaration stating either of the following:

“(A) The means by which the moving party met and conferred with the party who filed the pleading subject to the motion for judgment on the pleadings, and that the parties did not reach an agreement resolving the claims raised by the motion for judgment on the pleadings.

“(B) That the party who filed the pleading subject to the motion for judgment on the pleadings failed to respond to the meet and confer request of the moving party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc., § 439, subd. (a)(3)(A)-(B).)

COSB has failed to file and serve with the motion the declaration required by Code of Civil Procedure section 439 and described above. For these and all further reasons discussed above, the Court will order the motion off-calendar, without prejudice to the filing and service by COSB of a procedurally appropriate motion for judgment on the pleadings in the future.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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